GROUP ASSIGNMENT 2 (2026)

Group 3 · Group Members

No.	Student ID	Full Name	Participation Rate (%)
1	66011078	Mr. Natachat Teecharcharn	
2	66011097	Mr. Nutdanai Jindadang	
3	66011104	Miss Pamika Chantin	
4	66011106	Mr. Panas Sri-Anant	
5	66011126	Mr. Pasit Larpkittipanich	
6	66011128	Mr. Passakorn Laksanakorn	

Course Details

Course	Instructor	Submission date	Case
Ethics and Law for Financial Engineers	**Dr. Chatchai Lapprathana**	**21 October 2026**	**Manipulating the price of TSR shares**

Securities and Exchange Act B.E. 2535 (1992), as amended

Roadmap: How We Answer the Case

Part	Topic	What we cover	Key sections / method
01	**News**	The news URLs, what happened, the timeline and the stakeholders	All sources dated 2026
02	**Facts**	All facts (F1–F10), then every bullet point of the law mapped as ✓ or ✗	ss.238–244/7 checklist
03	**Question**	The one legal question this presentation answers	Facts → Question (guide)
04	**Law**	Which law we use, why, and which sections were violated	SEC Act B.E. 2535
05	**Analysis**	Rules 1–4, each answered as Law/Rule → Analysis → Conclusion	ss.244/3, 244/5, 296–296/2, 317/1–317/8
06	**Conclusion**	“In conclusion, …” — one answer to the Question	Answer to the Question

Method: “A guide to answer a legal question (2026)” · Securities and Exchange Act B.E. 2535

The News: Our Sources and URLs

Date	Outlet and headline	URL
23 Jan 2026	**มิติหุ้น (Mitihoon)** ก.ล.ต. ใช้มาตรการลงโทษทางแพ่งกับผู้กระทำความผิด 1 ราย กรณีสร้างราคาหรือปริมาณการซื้อขายหุ้น TSR	https://www.mitihoon.com/2026/01/23/611929/
23 Jan 2026	**ฐานเศรษฐกิจ (Thansettakij)** ก.ล.ต. ลงโทษทางแพ่ง ‘ภรัณยา รุจนพรพจี’ กรณีปั่นหุ้น TSR สั่งปรับกว่า 32 ล้าน	https://www.thansettakij.com/finance/stockmarket/649730
24 Jan 2026 **MAIN NEWS**	**หุ้นสมาร์ท (Hoonsmart)** ก.ล.ต.สั่งปรับ “ภรัณยา รุจนพรพจี” กว่า 32 ลบ. ปั่นหุ้น TSR	https://hoonsmart.com/archives/400329
26 Mar 2026 **Related case**	**ฐานเศรษฐกิจ (Thansettakij)** ก.ล.ต. ลงดาบ ‘ภรัณยา รุจนพรพจี’ กรณีปั่นหุ้น MSC	https://www.thansettakij.com/finance/stockmarket/654988
11 May 2026 **Follow-up**	**ฐานเศรษฐกิจ (Thansettakij)** ก.ล.ต. ส่งฟ้อง ‘ภรัณยา รุจนพรพจี’ คดีปั่นหุ้น TSR เรียกชำระ 43 ล้านบาท	https://www.thansettakij.com/finance/658785
11 May 2026 **Follow-up**	**หุ้นสมาร์ท (Hoonsmart)** ก.ล.ต.ขออัยการฟ้อง คดีสร้างราคาหุ้น TSR	https://hoonsmart.com/archives/417813

Main news: Hoonsmart (24 Jan 2026), the most complete account of the period, conduct, motive and sections cited.

Requirement met: every news item is dated after 1 January 2026, and every URL is listed above.

Mitihoon; Thansettakij; Hoonsmart (Jan–May 2026)

The News: What Happened

Who

นางสาวภรัณยา รุจนพรพจี, an individual investor and a major shareholder of SABUY

What

Created the price and volume of TSR shares (market manipulation, “ปั่นหุ้น”)

When

22 Jun – 31 Aug 2022 (47 trading days); sanctions announced Jan and May 2026

Where

TSR shares, listed on the Stock Exchange of Thailand (SET)

Why

So SABUY could book a fair-value gain on TSR at the end of Q2/2022, and to profit from the price spread

How

Hitting the offers, sweeping sell orders, and holding large bids at price levels 1 and 2

Outcome so far

CSC civil sanction of THB 32,327,329 (Jan 2026) → she refused → the SEC asked the prosecutor to sue in the Civil Court for THB 43,018,879.32 plus interest (May 2026).

Main news (Hoonsmart, 24 Jan 2026)
https://hoonsmart.com/archives/400329

Hoonsmart (24 Jan 2026); Mitihoon (23 Jan 2026); Thansettakij (23 Jan & 11 May 2026)

The News: Timeline of the Case

2022 · The Conduct

22 Jun 2022
Manipulation of TSR begins

30 Jun 2022
Q2/2022 quarter-end: SABUY values its TSR shares

31 Aug 2022
Conduct ends after 47 trading days

Oct 2022
SET refers the case to the SEC

~3 yrs

investigation

2026 · Enforcement

23 Jan 2026
CSC civil sanction: THB 32.3M, 6-month trading ban, 12-month director ban

26 Mar 2026
Related MSC case sent to court (THB 332.3M)

11 May 2026
She refuses; SEC asks the prosecutor to sue for THB 43.0M + interest; AMLO notified

Status: no court judgment reported as of October 2026.
All facts are as found by the SEC and the CSC. About three years passed between the SET referral (Oct 2022) and the CSC decision (Jan 2026).

Mitihoon (23 Jan 2026); Hoonsmart (24 Jan & 11 May 2026); Thansettakij (26 Mar & 11 May 2026)

The News: Who Are the Stakeholders?

Group	Stakeholder	Role in the case	Interest / impact
Wrongdoer side	นางสาวภรัณยา รุจนพรพจี	Alleged offender; placed the orders	Civil sanctions; possible criminal penalties
	SABUY (Sabuy Technology PCL)	Beneficiary; holds TSR as an investment	Fair-value gain in its Q2/2022 profit
Market	**TSR (company) and its shareholders**	The stock whose price was created	Distorted price and trading volume
	Other investors trading TSR	Misled about price and volume	Had to bid higher than they should have
Authorities	**Stock Exchange of Thailand (SET)**	Market operator; detected the trades	Referred the case to the SEC (Oct 2022)
	SEC Office	Regulator; investigates and enforces	Proposed sanctions; asked for a lawsuit
	Civil Sanction Committee (CSC)	Chaired by the Attorney-General (s.317/3)	Set THB 32.3M and the bans (Jan 2026)
	Public prosecutor and Civil Court	Bring and decide the civil case (s.317/8)	Claim of THB 43.0M + interest (May 2026)
	AMLO	Anti-money laundering review	Predicate offence; may trace funds

Hoonsmart (24 Jan & 11 May 2026); Thansettakij (11 May 2026); Securities and Exchange Act s.317/3

The Facts: Statement of Facts (F1–F10)

The Conduct (2022)

F1	นางสาวภรัณยา รุจนพรพจี is an individual investor and a major shareholder of SABUY.
F2	TSR is listed on the SET. SABUY held TSR shares as an investment measured at fair value.
F3	From 22 Jun to 31 Aug 2022 (47 trading days), she hit the offers to push the price up and swept the sell orders continuously.
F4	She held large buy orders at bid price levels 1 and 2; other investors were obstructed, had to bid higher, and the price rose.
F5	Per the SEC, her aims were a fair-value gain for SABUY at the end of Q2/2022 and a profit from the price spread.
F6	The SEC found the conduct misled the public about TSR's price and trading volume.

The Enforcement (2022–2026)

F7	The SET sent the information to the SEC in October 2022.
F8	Announced 23 Jan 2026: the CSC imposed THB 32,327,329 (civil penalty + benefit + SEC costs), a 6-month trading ban and a 12-month director ban.
F9	She did not consent. On 11 May 2026 the SEC asked the prosecutor to sue in the Civil Court for THB 43,018,879.32 + interest and maximum bans, and notified AMLO.
F10	The news reports no pre-opening or pre-closing orders, false statements, inside information, use of others' accounts, or system disruption.

Hoonsmart (24 Jan & 11 May 2026); Mitihoon (23 Jan 2026); Thansettakij (23 Jan & 11 May 2026)

The Facts: Inside the Order Book (F3, F4)

Hypothetical Order Book

Bid volume	Bid	Offer	Offer volume
2,500,000	3.80	3.82	40,000
1,800,000	3.78	3.84	55,000
60,000	3.76	3.86	30,000
45,000	3.74	3.88	70,000
30,000	3.72	3.90	25,000

Her large bid orders at levels 1 and 2 (F4)

Reading the board

Left = Bid (buyers' orders) · Right = Offer (sellers' orders).

Illustration only: the numbers are hypothetical, not actual TSR data.

How the Pattern Works

1. **Sweep (F3)**

   She buys up every offer at 3.82, so the last traded price ticks up.

2. **Wall (F4)**

   She parks huge bids at 3.80 and 3.78; the board shows 'strong demand'.

3. **Squeeze (F4)**

   Real buyers cannot get filled at the bid, so they pay the offer or higher. Repeat.

The Facts: The Motive — Why Push TSR Up? (F5)

Motive 1 · Make SABUY's Profit Look Better

Push TSR's price up

Buy-side pressure from 22 Jun 2022

→

Quarter-end: 30 Jun 2022

Q2/2022 closes 8 days later

→

SABUY re-measures TSR

Investment carried at fair value

→

Paper gain in Q2 profit

Earnings look better, nothing sold

Motive 2 · Trading Profit

Profit from the price spread: buy low, lift the price, then sell higher.

Buy low → **Lift the price** → **Sell higher**

Why It Matters in Law

Motive is evidence of intent

A clear motive is evidence of the intent required by Section 244/3(2), used in Rule 2.

"... on a continued basis with an intent to cause the price or the volume of such securities trading to be inconsistent with the normal market condition."

Hoonsmart (24 Jan 2026); Mitihoon (23 Jan 2026); Securities and Exchange Act s.244/3(2)

Facts → Law Checklist 1: Scope, s.244/3 and s.244/4

Provision	What the law says (bullet point)	Facts from the news	Aligned?
s.238	*"shall apply to listed securities and securities traded in the over-the-counter center"*	TSR is listed on the SET (F2)	✓ **In scope**
s.244/3(1)	*"placing a trading order or trading securities in such a way that misleads other persons regarding the price or volume …"*	Hit offers, held large bids; the public was misled (F3, F4, F6)	✓ **Yes → violates**
s.244/3(2)	*"… on a continued basis with an intent to cause the price or the volume … to be inconsistent with the normal market condition"*	47 trading days in a row; motive for SABUY and a spread (F3, F5)	✓ **Yes → violates**
s.244/4(1)	*Exception: "trading of securities for price stabilization under the underwriting agreement …"*	No underwriting or price stabilisation	✗ **No → no defence**
s.244/4(2)	*Exception: "repurchasing of shares or selling of the repurchased shares in the share repurchase project …"*	She is not the issuer; no buyback	✗ **No → no defence**
s.244/4(3)	*Exception: "purchasing or selling of securities in accordance with the … notification of the SEC"*	No SEC-permitted trading reported	✗ **No → no defence**

Result: the facts are aligned with s.244/3(1) and (2), and no exception in s.244/4 applies, so she violates s.244/3.

Securities and Exchange Act B.E. 2535, ss.238, 244/3, 244/4 (pp.80–82)

Facts → Law Checklist 2: Presumptions, s.244/5 (1)–(5)

Provision	What the law says (bullet point)	Facts from the news	Aligned?
s.244/5(1)	*"purchasing or selling securities in such a way that does not involve a change of beneficial ownership"*	No trades without a change of owner reported	✗ No
s.244/5(2)	*"placing a … purchasing order while being aware that oneself or an associate has made an order to sell … at a similar amount and a similar price …"*	No matching sell orders by her or an associate	✗ No
s.244/5(3)	*"placing a … selling order while being aware that oneself or an associate has made an order to buy … at a similar amount and a similar price …"*	No matching buy orders by her or an associate	✗ No
s.244/5(4)	*"placing, modifying, or cancelling … during the pre-opening or pre-closing period … to cause the opening or closing price … to be higher or lower …"*	Cited by the SEC, but no news gives facts on pre-open or pre-close orders (F10)	✗ Not used: no facts
s.244/5(5)	*"placing, modifying, or cancelling … in such a way that obstructs securities trading of other persons, which causes other persons to place a trading order at a higher or lower price …"*	Large bids at levels 1–2 obstructed others, who had to bid higher (F4)	✓ Yes → presumed

Result: presumption (5) applies, so the law presumes the 'misleading' element of s.244/3(1) and the 'abnormal price' element of s.244/3(2).

Securities and Exchange Act B.E. 2535, s.244/5 (p.83); news sources Jan–May 2026

Facts → Law Checklist 3: Other Offences, ss.240–244/2

Provision	What the law says (bullet point)	Facts from the news	Aligned?
s.240	*"inform, disseminate, or certify any statement or information that is false or materially misleading …"*	No false statement or information was spread (F10)	**✗ No**
s.241	*"analyse or forecast … by using information known to be false or incomplete … to the public"*	No analysis or forecast was published (F10)	**✗ No**
s.242(1)	*A person who knows inside information shall not "purchase or sell securities …"*	No inside information is alleged (F10)	**✗ No**
s.242(2)	*… shall not "disclose inside information to other persons …"*	No disclosure of inside information (F10)	**✗ No**
ss.243–244	*Presume who has "known or possessed the inside information under Section 242"*	Not needed: s.242 is not in issue	**– Not needed**
s.244/1	*A securities brokerage company or its staff must not trade ahead of a client's order*	She is not a securities company or its staff (F1)	**✗ No**
s.244/2	*s.244/1 also applies to fund-management companies and their staff*	She is not a fund manager (F1)	**✗ No**

Result: none of these bullet points is aligned, so ss.240, 241, 242, 244/1 and 244/2 are not violated.

Securities and Exchange Act B.E. 2535, ss.240–244/2 (pp.80–82)

Facts → Law Checklist 4: s.244/6 (1)–(7) and s.244/7

Provision	What the law says (bullet point)	Facts from the news	Aligned?
s.244/6(1)	*"opening a joint bank account for making a payment or receiving a payment related to … securities trading"*	She placed the orders herself. No shared accounts, payments, collateral or transfers with other persons are reported (F3, F10).	✗ **No**
s.244/6(2)	*"allowing any person to seek benefits by using one's own bank account …"*		
s.244/6(3)	*"allowing any person to use one's own securities trading account"*		
s.244/6(4)	*"making a payment or receiving a payment for a securities trading for any person"*		
s.244/6(5)	*"placing money or other assets as collateral for securities trading of any person"*		
s.244/6(6)	*"allowing any person to receive benefits or oversee payments … of one's own securities trading"*		
s.244/6(7)	*"transferring or receiving a transfer of securities between each other"*		
s.244/7	*Orders that "cause the securities trading system to delay or discontinue"*	No delay or halt of the trading system (F10)	✗ **No**

Overall result of Checklists 1–4: the facts are aligned only with s.244/3(1) and (2), supported by presumption s.244/5(5).

Securities and Exchange Act B.E. 2535, ss.244/6, 244/7 (pp.83–84)

Question

QUESTION

Has นางสาวภรัณยา รุจนพรพจี committed unfair securities trading under the Securities and Exchange Act B.E. 2535, and what sanctions may be imposed on her?

How We Answer It: Each Rule Follows Law/Rule → Analysis → Conclusion

Rule 1
s.244/3(1) + s.244/5(5)
Misleading other persons

Law/Rule → Analysis → Conclusion

Rule 2
s.244/3(2) + s.244/5(5)
Continuous trading with intent

Law/Rule → Analysis → Conclusion

Rule 3
ss.296, 296/1, 296/2, 297/1
Criminal penalties

Law/Rule → Analysis → Conclusion

Rule 4
ss.317/1–317/8
Civil sanctions (the route used)

Law/Rule → Analysis → Conclusion

The Law: What We Use, Why, and What Was Violated

Law	Sections	Why we use it	Result
Unfair securities trading offences	ss.238–244/7 (Chapter 8, Division 1)	TSR is a listed security (s.238), and the conduct is placing trading orders	**Violated: s.244/3(1)(2) with s.244/5(5)**
Criminal penalties	ss.296, 296/1, 296/2, 297/1	They set the punishment for s.244/3(1) and (2)	**Apply if she is prosecuted (Rule 3)**
Civil sanctions	ss.317/1–317/8	The route the SEC actually used: the CSC, then the Civil Court	**Apply: she refused, so the SEC sued (Rule 4)**

Which law was violated

Section 244/3(1) and (2) of the Securities and Exchange Act B.E. 2535, supported by the presumption in Section 244/5(5). No exception in Section 244/4 applies.

Cited but not used: s.244/5(4); no facts on pre-open or pre-close orders.

Not violated: ss.240, 241, 242, 244/1, 244/2, 244/7 (Checklists 3–4).

Securities and Exchange Act B.E. 2535: Chapter 8 Division 1; ss.296–297/1; ss.317/1–317/8

Rule 1 · Section 244/3(1): Law/Rule

1. Law/Rule

Under the Securities and Exchange Act B.E. 2535 Section 244/3(1)

No person shall take any of the following actions:

(1) placing a trading order or trading securities in such a way that misleads other persons regarding the price or volume of the securities trading;

Section 244/5(5) — presumption

Any of the following acts shall be presumed to be an act that has caused other persons to have a misunderstanding of the price or volume of the securities trading under Section 244/3 (1) ...:

(5) placing, modifying, or cancelling a securities trading order in such a way that obstructs securities trading of other persons, which causes other persons to place a trading order at a higher or lower price than it should have been.

Section 238 — scope

The provisions under this Division shall apply to listed securities and securities traded in the over-the-counter center.

Elements to Prove

1. Any person
2. Listed securities (s.238)
3. Placing a trading order or trading securities
4. Misleads other persons regarding price or volume (presumed by s.244/5(5))

Securities and Exchange Act B.E. 2535, ss.238, 244/3(1), 244/5(5) (pp.80–83)

Rule 1 · Section 244/3(1): Analysis and Conclusion

2. Analysis

From the facts, นางสาวภรัณยา hit the offers and held large bids in TSR shares from 22 June to 31 August 2022 (F3, F4). Under Section 244/3(1):

First, she is “any person” under the Section, as she is an individual investor (F1).

Second, TSR shares are listed on the SET, so this Division applies under Section 238 (F2).

Third, she placed trading orders and traded the securities by hitting the offers and sweeping the sell orders (F3).

Fourth, her large bids obstructed other investors, who had to bid higher (F4). This matches Section 244/5(5), so the law presumes that other persons were misled about the price or volume; the SEC also found that the public was misled (F6). No exception in Section 244/4 applies.

3. Conclusion

In conclusion, นางสาวภรัณยา’s conduct violates Section 244/3(1), supported by the presumption in Section 244/5(5).

Element Check

1. **Any person**
   ✓ Met · F1
2. **Listed securities**
   ✓ Met · F2
3. **Orders / trading**
   ✓ Met · F3, F4
4. **Misleads others**
   ✓ Met · F4, F6 + s.244/5(5)

Facts F1–F6; Securities and Exchange Act ss.238, 244/3(1), 244/4, 244/5(5)

Rule 2 · Section 244/3(2): Law/Rule

1. Law/Rule

Under the Securities and Exchange Act B.E. 2535 Section 244/3(2)

No person shall take any of the following actions: ...

(2) placing a securities trading order or trading securities on a continued basis with an intent to cause the price or the volume of such securities trading to be inconsistent with the normal market condition.

Section 244/5(5) — presumption

Any of the following acts shall be presumed to be ... an act that has caused the price or volume of such securities trading to be inconsistent with the normal market condition under Section 244/3 (2), as the case may be: ...

(5) placing, modifying, or cancelling a securities trading order in such a way that obstructs securities trading of other persons, which causes other persons to place a trading order at a higher or lower price than it should have been.

Not used: Section 244/5(4) (pre-opening / pre-closing orders) was cited by the SEC, but no news report gives facts about such orders (F10).

Elements to Prove

1. Placing a trading order or trading securities
2. On a continued basis
3. With intent to make price or volume inconsistent with the normal market condition

Securities and Exchange Act B.E. 2535, ss.244/3(2), 244/5(4)(5) (pp.82–83)

Rule 2 · Section 244/3(2): Analysis and Conclusion

2. Analysis

From the facts, นางสาวภรัณยา, a major shareholder of SABUY, kept placing buy orders in TSR shares for 47 trading days while SABUY held TSR at fair value (F1–F4). Under Section 244/3(2):

First, she placed securities trading orders and traded TSR shares (F3, F4).

Second, she did so on a continued basis: day after day for 47 trading days, not as a single order (F3).

Third, she had the intent required: the SEC found she wanted SABUY to record a fair-value gain at the end of Q2/2022 and to profit from the price spread (F5). Her bids also obstructed others (F4), so Section 244/5(5) presumes the price was inconsistent with the normal market condition.

However, we do not rely on Section 244/5(4), because the news gives no facts about pre-opening or pre-closing orders (F10).

3. Conclusion

In conclusion, นางสาวภรัณยา's conduct also violates Section 244/3(2), which carries the heavier penalty in Section 296/1.

Element Check

1 **Orders / trading**
✓ Met · F3, F4

2 **Continued basis**
✓ Met · F3 (47 days)

3 **Intent: abnormal price**
✓ Met · F5 + s.244/5(5)

4 **s.244/5(4) not used**
No facts (F10)

Facts F1–F5, F10; Securities and Exchange Act ss.244/3(2), 244/5(4)(5), 296/1

Rule 3 · Criminal Penalties: Law/Rule

1. Law/Rule · Section 296

Any person who contravenes Section 240, Section 241, Section 242, Section 244/1, Section 244/2 or Section 244/3 (1) shall be liable to imprisonment for a term not exceeding two years or a fine from five hundred thousand baht to two million baht, or both.

1. Law/Rule · Section 296/1

Any person who contravenes Section 244/3 (2) or Section 244/7 shall be liable to imprisonment for a term not exceeding five years or a fine from one million baht to five million baht, or both.

1. Law/Rule · Section 296/2

... if the offender has received or should have received a benefit from such offence, a fine not exceeding two times the benefit shall be imposed and in any case such fine shall not be less than the minimum amount as specified under Section 296 or Section 296/1 ...

1. Law/Rule · Section 297/1 (court orders on conviction)

In cases where a court views that a defendant has committed an offence under ... Section 296, Section 296/1 ..., the court shall order the offender ...: (1) to pay a compensation at an equal amount to the benefit received or should have been received ...; (2) to be suspended from trading in securities ... which shall not exceed five years ...; (3) to be barred from serving as a director or executive ... which shall not exceed ten years ...; (4) to reimburse the investigative expenses incurred by the SEC Office.

Securities and Exchange Act B.E. 2535, ss.296, 296/1, 296/2, 297/1 (pp.97–98)

Rule 3 · Criminal Penalties: Analysis and Conclusion

2. Analysis

From the facts, Rules 1 and 2 show that นางสาวภรัณยา violated Section 244/3(1) and (2), and the CSC ordered her to pay compensation equal to the benefit she received or should have received (F8). If she is prosecuted:

First, for Section 244/3(1), Section 296 applies: imprisonment of up to two years, or a fine of THB 0.5–2 million, or both.

Second, for Section 244/3(2), the heavier Section 296/1 applies: imprisonment of up to five years, or a fine of THB 1–5 million, or both.

Third, because she received or should have received a benefit (F5, F8), Section 296/2 sets the fine at up to two times the benefit, but not below the Section 296 or 296/1 minimum.

In addition, on conviction the court may order under Section 297/1 compensation equal to the benefit, a trading ban of up to 5 years, a director ban of up to 10 years, and reimbursement of SEC costs.

3. Conclusion

In conclusion, she faces up to five years' imprisonment and a fine of up to two times the benefit (at least THB 1 million), unless the criminal right ends through the civil route in Rule 4.

Penalty Exposure

s.296 · for (1)
≤ 2 yrs · THB 0.5–2M

s.296/1 · for (2)
≤ 5 yrs · THB 1–5M

s.296/2 · benefit
Fine ≤ 2× the benefit

s.297/1 · court orders
Bans ≤ 5 / 10 yrs

Rules 1–2; Facts F5, F8; Securities and Exchange Act ss.296, 296/1, 296/2, 297/1, 317/8

Rule 4 · Civil Sanctions: Law/Rule

1. Law/Rule · Section 317/1(1)

The following offences shall be deemed the offences whereby civil sanctions may be imposed on the offenders: (1) committing unfair securities trading practice, which is an offence under Section 296 or Section 296/1;

1. Law/Rule · Section 317/4

Civil sanctions shall be: (1) a civil penalty under Section 317/5; (2) a compensation at an equal amount to the benefit received or should have been received …; (3) a suspension of trading … not exceeding five years; (4) a bar from serving as a director or executive … not exceeding ten years; (5) a reimbursement of investigative expenses incurred by the SEC Office.

1. Law/Rule · Section 317/5(1)

… a civil penalty shall be imposed at an amount not exceeding two times the benefit that such person received or should have received from committing such offence, but not less than five hundred thousand baht, and in cases where the benefit is incalculable, … from five hundred thousand baht to two million baht;

1. Law/Rule · Sections 317/7 and 317/8

317/7: … the offender agrees to comply with the specified civil sanction … after the offender has made a payment in full, the right to institute a criminal prosecution shall extinguish.

317/8: In cases where the offender refuses to extinguish the case under Section 317/7, the SEC Office shall bring an action against the offender in the court …, and … the interest thereof shall be accumulated as from the date of entry of the plaint until the payment is made in full. After the court has passed a judgment or ordered a civil sanction, and the offender has made the payment in full, the right to institute criminal prosecution shall extinguish.

Securities and Exchange Act B.E. 2535, ss.317/1, 317/4, 317/5, 317/7, 317/8 (pp.102–104)

Rule 4 · Civil Sanctions: Analysis and Conclusion

2. Analysis

From the facts, the CSC imposed civil sanctions on นางสาวภรัณยา (F8), but she did not consent, so the SEC asked the prosecutor to sue her in the Civil Court on 11 May 2026 (F9). Under Sections 317/1–317/8:

First, her offences under Section 244/3(1) and (2) are punishable under Sections 296 and 296/1, so civil sanctions may be imposed under Section 317/1(1).

Second, the CSC used all five sanctions in Section 317/4: a civil penalty, compensation for the benefit and SEC costs (THB 32,327,329 in total), a 6-month trading ban and a 12-month director ban, within the 5- and 10-year limits (F8).

Third, she refused to settle under Section 317/7, so Section 317/8 applies: the SEC must sue in court, with interest from the filing date. The SEC claims THB 43,018,879.32 plus interest (F9).

Finally, under Section 317/8 the criminal right ends only after the court's judgment and full payment.

3. Conclusion

In conclusion, civil sanctions under Sections 317/1(1), 317/4 and 317/5 apply; because she refused them, the case is before the Civil Court under Section 317/8.

Applied to TSR

CSC · Jan 2026
THB 32,327,329

Bans set by the CSC
6 months · 12 months

Civil Court · May 2026
THB 43,018,879.32 + interest

Status
Pending (Oct 2026)

Facts F8, F9; Securities and Exchange Act ss.317/1(1), 317/4, 317/5(1), 317/7, 317/8

Conclusion: Answer to the Question

3. Conclusion

In conclusion, นางสาวภรัณยา รุจนพรพจี has committed unfair securities trading under Section 244/3(1) and (2) of the Securities and Exchange Act B.E. 2535, supported by the presumption in Section 244/5(5), by hitting the offers and holding large bids in TSR shares for 47 trading days to lift the price for SABUY's benefit. She may face up to five years' imprisonment and a fine of up to two times the benefit under Sections 296/1 and 296/2. The SEC chose civil sanctions instead: she refused the CSC's THB 32.3 million sanction, so under Section 317/8 the SEC is suing her in the Civil Court for THB 43.0 million plus interest.

Rule 1 · s.244/3(1)	Rule 2 · s.244/3(2)	Rule 3 · Criminal	Rule 4 · Civil
Violated (presumption s.244/5(5))	**Violated (intent shown by the motive)**	**Up to 5 years · fine ≤ 2× benefit**	**THB 32.3M refused → THB 43.0M claim**

Based on the facts reported in the news, as found by the SEC and the CSC; no court judgment had been reported as of October 2026.

Thank You

Group 3 · TSR Market Manipulation Case

Questions and discussion

Group Assignment 2 (2026) · Ethics and Law for Financial Engineers
Instructor: Dr. Chatchai Lapprathana

Main news · Hoonsmart, 24 Jan 2026
https://hoonsmart.com/archives/400329

Follow-up · Thansettakij, 11 May 2026
https://www.thansettakij.com/finance/658785



Illustration only (not actual TSR data).